11. Miscellaneous provisions relating to elections.

12. Barring the jurisdiction of civil courts.

DELIMITATION ACT, 2002

Articles 82 and 170 of the Constitution of India provide for readjustment and the division of each State into territorial constituencies (Parliamentary constituencies and Assembly constituencies) on the basis of the 2001 census by such authority and in such manner as Parliament may, by law, determine.

Further, Articles 330 and 332 of the Constitution of India provide for re-fixing the number of seats reserved for the Scheduled Castes and the Scheduled Tribes in the House of the People and Legislative Assemblies of the States on the basis of the 2001 census.

The previous delimitation of Parliamentary and Assembly constituencies is based on the 1971 census. The uneven growth of population in different constituencies in different parts of the country as well as within the same State as also continuous migration of people / electorate from one place to other especially from rural areas to urban areas have resulted in strikingly differing sizes of electoral constituencies even within the same State.

Therefore, the Delimitation Act, 2002[1], was enacted to set up a Delimitation Commission for the purpose of effecting delimitation on the basis of the 2001 census so as to correct the aforesaid distortion in the sizes of electoral constituencies.

OTHER ACTS RELATING TO ELECTIONS

1. Parliament (Prevention of Disqualification) Act, 1959 declares that certain offices of profit under the Government shall not disqualify the holders thereof for being chosen as (or for being) members of Parliament.

2. Scheduled Castes and Scheduled Tribes Orders (Amendment) Act, 1976 provides for the inclusion in, and the exclusion from, the lists of Scheduled Castes and Scheduled Tribes, of certain castes and tribes, for the readjustment of representation of parliamentary and assembly constituencies.

3. Government of Union Territories Act, 1963.

4. Government of National Capital Territory of Delhi Act, 1991.

5. Presidential and Vice-Presidential Elections Act, 1952 regulates certain matters relating to or connected with elections to the offices of the President and Vice-President of India.

RULES RELATING TO ELECTIONS

1. Registration of Electors Rules, 1960 provide for the preparation and publication of electoral rolls.

2. Conduct of Elections Rules, 1961 facilitates conduct of fair and free elections to the Parliament and State Legislatures.

3. Prohibition of Simultaneous Membership Rules, 1950.

4. Members of Lok Sabha (Disqualification on Ground of Defection) Rules, 1985.